

Balasubramanian vs Shanthi on 24 March, 2021

Equivalent citations: AIRONLINE 2021 MAD 246

Author: Pushpa Sathyanarayana

Bench: Pushpa Sathyanarayana

1

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 24.03.2021

CORAM:

THE HONOURABLE MRS.JUSTICE PUSHPA SATHYANARAYANA
AND
THE HONOURABLE MRS.JUSTICE S.KANNAMMAL

C.M.A(MD)No.42 of 2017

Balasubramanian ... Appellant/Petitioner

Vs.

Shanthi ... Respondent/Respondent

Prayer: Civil Miscellaneous Appeal filed under Section 19 of the Family Courts Act, 1984, r/w Order 41 Rule 1 of C.P.C against the Judgment and decree, dated 08.09.2016 passed in H.M.O.P.No.47 of 2014 on the file of the Family Court, Srivilliputhur.

For Appellant : Mr.C.Vakeeswaran

For Respondent : Mr.A.John Vincent

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2

JUDGMENT

(Judgment of the Court was delivered by PUSHPA SATHYANARAYANA,J.) The unsuccessful appellant/husband in the matrimonial dispute has preferred the above Civil Miscellaneous Appeal.

3.The appellant had filed H.M.O.P.No.47 of 2014, on the file of the Family Court, Srivilliputhur under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act').

4.The marriage between the appellant and the respondent was solemnized on 05.11.2003 as per the Hindu Rites and Customs. After the marriage, they have been living in a joint family with the parents of the appellant. The respondent was never willing to live in a joint family and had been pressurizing the appellant to have a separate establishment. The respondent has also stated that she will not help or assist the parents of the appellant, if she is living in a joint family. The appellant had further stated that the respondent demanded a sum of Rs.50,000/- along with her parents, failing which, she would give a complaint for dowry harassment. Accordingly, on 14.10.2004, the appellant seems to have paid a sum of Rs.50,000/- to the father of the respondent. The respondent is alleged to have been continuously <http://www.judis.nic.in> torturing the appellant to pay money to the respondent's parents. As the appellant was unable to earn to the expectation of the respondent, she had left the matrimonial home and went to her parents house. In the year 2005, a boy child was born out of the wedlock. Even after that, the respondent never took any attempt to come back to the matrimonial home. The appellant is bound to maintain his parents, who are aged and therefore, came back to Lakshmiyapuram Village. The respondent refused to come and live with him and insisted that she will be willing to live in a separate rented premises and will not come back to the joint family. As the appellant was taking care of his parents, not liking the same, the respondent had been causing unnecessary mental agony to the appellant.

5.While so, in the year 2009, the respondent secured a job in one of the Technical Institute at Sivakasi. The appellant had also co-operated in setting up a separate house in Sivakasi. As the appellant continued to take care of his parents, the respondent did not like the same and used to lock the house before the appellant could come home. Later, when the appellant had constructed a new house and invited the respondent to come and live with him, she refused to come and insisted that the appellant should not visit his parents or maintain them. As the respondent refused to live with the appellant, on 11.08.2011, the appellant had sent a legal notice under Section 9 <http://www.judis.nic.in> of the Act for restitution of conjugal rights. Though the notice was received, there was no response. As the attitude of the respondent was causing cruelty and mental agony to the appellant, he had filed a petition for divorce.

6.The said petition was resisted by the respondent alleging that she was not happy in the matrimonial home, as the family of the appellant has torturing the respondent by making her to do all the domestic job. She has also alleged that she was not treated properly by the appellant and his parents. Excepting denial of all the allegations made by the respondent, she has not stated any specific incident of torture or cruelty.

7.We have carefully gone through the evidence adduced by the parties before the Family Court, Srivilliputhur and tried to find out as to why the Family Court had dismissed the petition filed by the

appellant.

8.The main allegation of the appellant was that the respondent wanted to get separated from the joint family and she did not want the parents-in-law to be maintained from the income of the appellant. Admittedly, the appellant is the only son and an earning member in the family and he is legally and morally bound to maintain his parents, <http://www.judis.nic.in> whereas, the respondent has been insisting on a separate establishment and never wanted to be in the joint family. So the constant nagging of the respondent had caused deep anxiety, disappointment and frustration in the mind of the appellant and that he has sought for divorce.

9.On the above facts, the Judge, Family Court, Srivilliputhur, has found as follows:-

“vjph;kDjhuUk; kDjhuUk; bfhLj;j rhl;rpaj;jpd;go ,UtUk; fle;j 2011k; Mz;oypUe;J jdpna gphpe;J thH;eJ; tUfpwhh;fs;. Kdjhu; jd;Dila bgw;nwhUld; vjph;kDjhuh; jdJ FHe;ija[ld; jdJ bgw;nwhh; tPl;oYk; trpj;J tUfpwhh;fs;> gphpe;J thH;tjhy; kDjhuh; FHe;ijapd;

ghrj;ij ,He;jpUf;fpwhh;. jhk;gj;a cwit ,He;jpUf;fpwhh;. ,uz;L cwt[fisa[k; ,Hf;Fk;ngHJ kdhPjpahf ghjpg;gila tha;g;gpUf;fpwJ. Vjph;kDjhuh; epahakh dhuzbkJt[kpy;yhky; kDjhuiutpl;L gphpe;J thH;e;J tUthnuahdhy; kDjhuUf;F Vw;gLk; kdhPjpahd ghjpg;g[fF ; vjph;kDjhunu fhuzkhthh;> vjph;kDjhuhplk;

fztiutpl;L gphpe;j thH;e;J tUtjw;F epahakh dhuzk; ,Uf;Fnkahdhy; vjph;kDjhuh; fztid iftpl;Ltpl;lhbud;D fUjKoahJ. epahakh fuhzkuUf;Fk;ngHJ vjph;kDjhuh; fztidtpl;L gphpe;J thH chpikapUf;fpwJ. mjdh; kDjhuUf;F kdhPjpahf Vw;glf;Toa ghjpg;g[fF; vjph;kDjhui bghWg;ghf;FtJ KiwahdjhfapUf;fhJ.” <http://www.judis.nic.in>

10.Having found as above, the Judge, Family Court, Srivilliputhur, ought to have seen whether the respondent is stayed away from the appellant on any justifiable cause. In fact, till they were separated, they were living in Sivakasi in a separate establishment.

11.The Judge, Family Court, Srivilliputhur, has found that if the appellant has a right to demand that the respondent has to come and live in a place wherever he wished, equally, the respondent is entitled to choose a place of her own choice and the appellant also can go with her. Therefore, merely because, the respondent insisted on a separate establishment or she wanted the appellant to come and live in a place for her convenience will not amount to cruelty and on that ground, the said H.M.O.P filed by the appellant for the relief of divorce was dismissed.

12.Even the Hon'ble Supreme Court in several cases held that unlike Western Countries where upon getting marriage or attaining majority, the son does not get separated from the family and normally, it is a wife, who is expected to be with the family of the appellant after marriage. The said tradition is being followed, albeit there are exceptions. Once the wife is married, she becomes the part of the husband's family and without any justifiable strong reason, a wife would never insist that the husband should get separated from <http://www.judis.nic.in> the family and will live only with her in a separate establishment. In this regard, it would be worthwhile to advert to the decision of the

Hon'ble Supreme in Narendra Vs. K.Meena reported in 2016 (9) SCC 455, which reads as follows:-

“11..... In the instant case, upon appreciation of the evidence, the trial Court came to the conclusion that merely for monetary considerations, the respondent wife wanted to get her husband separated from his family. The averment of the respondent was to the effect that the income of the appellant was also spent for maintaining his family. The said grievance of the respondent is absolutely unjustified. A son maintaining his parents is absolutely normal in Indian culture and ethos. There is no other reason for which the respondent wanted the appellant to be separated from the family – the sole reason was to enjoy the income of the appellant. Unfortunately, the High Court considered this to be a justifiable reason. In the opinion of the High Court, the wife had a legitimate expectation to see that the income of her husband is used for her and not for the family members of the respondent husband. We do not see any reason to justify the said view of the High Court. As stated hereinabove, in a Hindu Society, it is a pious obligation of the son to maintain the parents. If a wife makes an attempt to deviate from the normal practice and normal custom of the society, she must have some justifiable reason for that and in this case, we do not find any justifiable reason, except monetary consideration of the respondent wife. In our opinion, normally, no husband would tolerate this and no son would <http://www.judis.nic.in> like to be separated from his old parents and other family members, who are also dependent upon his income. The persistent effort of the respondent wife to constraint he appellant to be separated from the family would be torturous for the husband and in our opinion, the trial Court was right when it came to the conclusion that this constitutes an act of 'cruelty'”.

13.The above decision makes it clear that if the wife insist on the husband to get separated from the family would be torturous for the husband, when he has an obligation to take care of his aged parents.

14.It is not the case of the respondent that she suffered cruelty in the hands of the husband's family. In fact, the appellant had admitted to have a separate establishment for the sake of his wife and had been parallely taking care of his parents as well, but the said act was not also liked by the respondent. It is also not the case of the respondent/wife that her parents were helpless and nobody is there to take care of them. There is no such pleadings by the respondent.

15.On going through the allegations made by both the parties, the findings recorded by the Family Court is not correct. Therefore, we are inclined to hold that unsubstantiated allegations levelled by the respondent and persistent sufferings to separate the family from the appellant's parents would amount to mental cruelty and the marriage <http://www.judis.nic.in> deserves to be dissolved by a decree of divorce on the ground stated in Section 13(i)(ia) of the Act.

16.The constant nagging of the wife would certain adversely affect the life of the husband. Admittedly, the respondent has been living separately from the year 2011. The child born out of the wedlock also is above 15 years and has been raised by the mother/respondent. Therefore, there is no

point in bringing the parties together when they themselves are unable to reconcile for their deeds.

17. In view of the above discussions, the Judgment and Decree of the Judge, Family Court, Srivilliputhur is set aside and the Civil Miscellaneous Appeal is allowed and the marriage solemnized between the appellant and the respondent on 05.11.2003 is dissolved by a decree of divorce on the ground of the cruelty under Section 13(i)(ia) of the Act. No costs.

[P.S.N., J] [S.K., J.]
24.03.2021

Index : Yes/No
Internet : Yes/No
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Note :
In view of the present lock down owing to COVID-19 pandemic, a web copy of the order may be utilized for official purposes, but, ensuring that the copy of the order that is presented is the correct copy, shall be the responsibility of the advocate / litigant concerned.

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PUSHPA SATHYANARAYANA, J.

and

S. KANNAMMAL, J.

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To

- 1.The Judge,
Family Court,
Srivilliputhur.
- 2.The V.R Section (Records),
Madurai Bench of Madras High Court,
Madurai.

24.03.2021

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